

7.

CASE #	CASE NAME	HEARING NAME
CVRI2601240	AMERICAN WEST RESTORATION, INC. VS JOHNSON	DEMURRER ON COMPLAINT

Tentative Ruling:

The demurrer of California Automobile Insurance Company (“Mercury”) to the second and eighth causes of action of the complaint is sustained with 21 days’ leave to amend.

Mercury’s request for judicial notice is denied.

The Court does not consider the three exhibits on which Mercury’s demurrer relies. All factual representations supported by citations to those documents rather than to allegations of the complaint are disregarded, as are all factual representations in the demurrer that are not supported by any citations at all.

Analysis:

Preliminarily, the Court notes that Mercury utterly failed to comply with Code of Civil Procedure section 430.41, subdivision (a), which requires that before filing a demurrer, a party must meet and confer with the opposing side “in person, by telephone, or by video conference.” Sending an email without bothering to follow up with a telephone conference or other real-time meeting is not sufficient. Nevertheless, the Court chooses to decide it now rather than to continue it or to take it off calendar.

Mercury appears to not understand that a demurrer to a pleading is limited to the allegations of the pleading and to matters of which judicial notice may be taken. Mercury asks the Court to take judicial notice of a Fire Investigation Report pursuant to Evidence Code section 451(a), section 452(h), and section 453. None apply. Section 451 deals with decisional, constitutional, and statutory law of California and the United States. That obviously is inapplicable to the subject report. Section 453 merely provides that matters under section 452 must be judicially noticed upon request. Section 452(h) deals with facts or propositions that are not reasonably subject to dispute. Mercury does not identify the fact or proposition to which it is referring. Even if the Court were able to take judicial notice of the existence of the report, it would not be proper to take judicial notice of the truth of its contents. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.)

Mercury also relies upon two other documents, neither of which are within the four corners of the complaint, and neither of which Mercury claims to be subject to judicial notice. Mercury does not explain how either of those documents is properly considered in the context of a demurrer.

Turning to the merits, in substance Mercury is arguing that the complaint fails to sufficiently allege the existence of a contract between the plaintiff and Mercury. The Court agrees that it does not. While it alleges the existence of a contract between plaintiff and the homeowners (para. 18) and alleges that Mercury was notified of some of the terms of that contract (para. 19), it is silent regarding the terms of any contract that may have been entered into between plaintiff and Mercury. The invocation of the conclusion that the notice to Mercury resulted in “contractual privity” between Mercury and the plaintiff is not sufficient. Even if it were, no explanation is offered of the legal effect of such alleged privity. Leave to amend is granted to give the plaintiff the opportunity to cure this defect.